

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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RAPHAEL ANIL

Plaintiff,

SUMMONS

against-

Index No. _____

NEW YORK CITY POLICE OFFICER ALBERTO TORRES -CHAMORRO,
Shield #12122, in his individual and official capacity as employee of the City of
New York, CITY OF NEW YORK,

Defendants.
-----X

To the above-named Defendants:

YOU ARE HEREBY SUMMONED: to answer the complaint in this action and to serve a copy of your answer, or if the Complaint is not served with this Summons, to serve Notice of Appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: Brooklyn, New York

December 8, 2021

Attorney(s) for the Plaintiff

Douglas G. Rankin, Esq.
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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
RAPHAEL ANIL

Plaintiff,

COMPLAINT

against-

Index No. _____

NEW YORK CITY POLICE OFFICER ALBERTO TORRES CHAMORRO,
Shield #12122, in his individual and official capacity as employee of the City of
New York, CITY OF NEW YORK,

Defendants.

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The Plaintiff, Raphael Anil, by his attorney, Douglas G. Rankin, Esq., alleges the
following, upon information and belief for this Complaint:

INTRODUCTION

1. This is a civil rights action for money damages brought pursuant to 42 U.S.C. §§§ 1981, 1983, and 1988, the Fourth, Eighth and Fourteenth Amendments of the United States Constitution, against the police officer mentioned above in their individual capacities, and against the City of New York.
2. It is alleged that the that these defendants maliciously prosecuted, violating his rights under the Fourth, Eighth and Fourteenth Amendments to the United States Constitution. It is further alleged that these violations and torts were committed as a result of policies and customs of the City of New York.
3. Plaintiff seeks compensatory and punitive damages, affirmative and equitable relief, an award of attorneys' fees and costs, and such other relief as this Court deems equitable and just.

STATUTE OF LIMITATIONS TOLLED

4. The statute of limitations period applicable to §1983 suits is three (3) years from date of accrual. The statutes of limitation were “tolled” in New York by Executive Order No. 202.8, issued by Governor Andrew M. Cuomo on March 20, 2020, in response to the COVID-19 pandemic. Over the next six-and-a-half months, that toll was renewed by further executive order every 30 days until, on October 4, 2020, the Governor issued Executive Order No. 202.67, announcing that the tolling order would be extended for only one more 30-day period “until November 3, 2020, and after such date [statutes of limitation] will no longer be tolled.” On November 3, 2020, the Governor issued Executive Order No. 202.72, confirming that the tolling period would no longer be in effect beginning November 4, 2020. A total tolling period of 228 days. Plaintiff was acquitted of all charges on April 27, 2018.

PARTIES

5. Plaintiff (hereinafter “Plaintiff Anil”) was at all material times a resident of Yonkers, New York and of proper age to commence this lawsuit.
6. Defendant New York City Police Officer Alberto Torres- Chamorro (hereinafter “New York City Police Officer Torres -Chamorro”) was at all times relevant to this complaint duly appointed officer of the Police Department of the City of New York, acting under color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs, and usages of the State of New York and/or the City of New York.

7. The City of New York (hereinafter "The City") is, and was at all material times, a municipal corporation duly organized and existing pursuant to the laws, statutes, and charters of the State of New York. The City operates the District Attorney's Office, New York County and the N.Y.P.D. a department or agency of defendant City responsible for the appointment, training, supervision, promotion and discipline of assistant district attorneys and police officers, including the individually named defendant herein.
8. The City was at all material times the public employer of defendant named herein.

FACTUAL ALLEGATIONS

9. On or about May 29, 2015, in front of 380 Amsterdam Avenue in the County of New York. Plaintiff Anil was charged with operating a motor vehicle while under the influence of alcohol or drugs and illegal to possess marihuana (VTL 1192.2;1192.3;1192.1; and PL 221.05). Defendant Officer Torres-Chamarro maliciously and falsely prosecuted Plaintiff Anil under the fabricated charges, prosecution and police paperwork and sworn testimony. Plaintiff Anil maintained his innocence for almost three (3) years and was ultimately acquitted of all charges by a jury of his peers on April 27, 2018.
10. During Plaintiff Anil's trial, the main element lacking in the District Attorney's Office evidence was the lack of intent to move the vehicle. Prosecution could not show that Plaintiff Anil tried to place the vehicle in motion, which is exactly what Plaintiff Anil would have to do, who an attempt to move. The prosecution and Plaintiff Anil disputed at trial whether the engine was on, but even if in fact the engine had been running, that is not legally sufficient to establish intent to move a vehicle.

11. The District Attorney's Office also purposefully left out the following evidence during the trial: the reason there was no intent to move the vehicle, is because the car was parked directly in front of Plaintiff's brother's house. Plaintiff was there on or about May 29, 2015, to watch a major NHL hockey game. Plaintiff Anil and his friends were at his brother's house, where Plaintiff Anil planned to spend the night, and as such parked his vehicle right in front of his brother's home. Plaintiff Anil admitted that he went into his parked vehicle to smoke marijuana because his brother's wife does not allow him to smoke it in their home. Plaintiff Anil didn't want to smoke in the street, so he got into his vehicle, put the window down, but never turned on the engine, because his Mercedes Benz has a part where you can turn it a bit with the battery and the parking lights goes on the radio turns on. Plaintiff Anil did not have to completely turn the car on to do this, Plaintiff Anil was sitting in the car, smoking marijuana with no intention of moving his vehicle.
12. Defendant Officer Torres-Chamarro testified that he put his vehicle lights and siren once he observed Plaintiff Anil's vehicle was on, specifically he heard the engine of the vehicle. Defendant Officer Torres-Chamarro then changed his testimony, stating his siren is loud and that it wasn't on, but this was only once defense counsel inquired how he was able to hear the engine, if his siren was on. Defendant Officer Torres-Chamarro testified on direct that he did in fact have his siren on and the prosecution did not attempt to have Defendant Torres clarify his false testimony.
13. Defendant Officer Torres-Chamarro testified that he had an independent recollection that Plaintiff's vehicle engine was running, despite the arrest having occurred almost three (3) years earlier. Defendant Torres-Chamarro also wrote in memo book that the engine was

running, and he testified that he touched the hood of the vehicle, yet somehow, he didn't write that alleged observation in his memo book. Again, Defendant Officer Torres-Chamarro testified this was based on his independent recollection, almost three (3) years prior.

14. Defendant Officer Torres-Chamarro testified that he could recall marijuana being found in the ashtray of Plaintiff Anil's vehicle, nor did he recover said marijuana. yet that observation was in fact written in him memo book.

15. Defendant Officer Torres-Chamarro testified that prior to seeing Plaintiff Anil in his vehicle, he did see the same car parked with no one inside of it, the engine off and no keys in the vehicle and parked in the same spt. Defendant Officer Torres-Chamarro claims that he told Plaintiff Anil to stay in the vehicle, but he got out of the vehicle. Yet, Defendant Officer Torres-Chamarro testified previously on October 12, 2015, under oath, when asked if he saw Plaintiff Anil behind the wheel of this vehicle, with the engine running, and then he saw Plaintiff Anil subsequently turn the vehicle off and get out of the car, Officer Torres-Chamarro answered yes. Again, Defendant Officer Torres-Chamarro provided false testimony under oath. Defendant Officer Torres-Chamarro also testified that he did not see the car move.

16. Defendant Officer Torres-Chamarro also admitted during cross examination that when he saw Plaintiff Anil for the first time, he observed him behind the wheel of the vehicle, with the engine running and then Plaintiff Anil subsequently turned off the vehicle and got of the car. Defendant Officer Torres-Chamarro also admitted that Plaintiff Anil was in the parked spot.

17. Defendant Officer Torres-Chamarro testified at that although he was the arresting officer, he could not recall having filled out any of the police paperwork, specifically the complaint report and the online booking sheet, both generated from his arrest of Plaintiff Anil. Defendant Officer Torres-Chamarro testified that the processing officer typed the documents and that he, provided the processing officer with his observations. Defendant Officer Torres-Chamarro was shown the I.D.E., I.D.T.U or what is commonly called D.W.I. and was able to recognize his own signature yet was unable to the recognize the handwriting in print as being his own.
18. Defendant Officer Torres-Chamarro testified he was present during the video taping of Plaintiff Anil in the I.D.T.U. Room, yet there is no video footage of Defendant Officer Torres-Chamarro, nor is there any audio of Defendant Officer Torres-Chamarro speaking in the video. Defendant Officer Torres-Chamarro testified that there no paperwork indicating that he was in fact in the room during the videotaping of Plaintiff Anil.
19. Defendant Officer Torres-Chamarro testified that Plaintiff Anil did state a few times while in the room, on video that he was not driving.
20. Defendant Officer Torres-Chamarro testified that while in the I.D.T.U. Room Plaintiff Anil performed some test and that he, Defendant Officer Torres-Chamarro did review the I.D.T.U. paperwork. Defendant Officer Torres-Chamarro went on to further testify that in performing the balance test Plaintiff Anil was fairly steady and when asked about the on-leg stand being steady, Defendant Officer Torres-Chamarro, replied "what do you mean steady? Defendant Officer Torres-Chamarro when asked about the walk and turn being steady Defendant Officer Torres-Chamarro replied, "walk and turn, no it was not" and that the one-leg stand was not steady.

21. Defendant Officer Torres-Chamarro admitted that the finger to nose test was accurate but when asked about the balance test, Defendant Officer Torres-Chamarro stated, “no, he was moving around a lot”. Asked about the finger to nose test, Defendant Officer Torres-Chamarro testified, “He followed instruction. I don’t know if he actually touched his nose or not.”
22. Yet, New York City Police Officer Kevin Outlaw, the breath analyzer operator, testified that on the I.D.T.U. Paperwork that he filled out, it indicated that Plaintiff Anil’s balance regarding the coordination test, indicated that it was “steady.” As for the walk and turn test, Officer Outlaw indicated steady as well as for the on-leg stand. Officer Outlaw also indicated accurate for the finger to nose test. As to speech, the paperwork was left blank however, Officer Outlaw watched the video and testified that Plaintiff Anil’s speech was not slurred and that his speech was in fact clear. Officer outlaw further testified that Plaintiff Anil’s speech, balance, wall and turn, one-leg stand, finger to nose test, were all performed accurately. This despite Defendant Officer Torres-Chamarro’s previous false testimony 1 and the district attorney allowing Defendant Officer Torres-Chamarro to lie under oath.
23. Defendant Officer Torres-Chamarro arrested Plaintiff Anil with lack of probable cause and continued the prosecution of Plaintiff Anil for the next three (3) while falsely testifying under oath in an attempt to convict Plaintiff Anil, who was eventually acquitted of all charges.
24. Because of Defendant Officer Torres-Chamarro’s malicious prosecution of Plaintiff Anil was viewed as a criminal in the eyes of this employer and subsequently terminated; 35 weeks of a suspended license; the inability to change/upgrade automobile insurance;

private attorney fees, approximately 41 court appearances; and a conditional license for approximately three (3) years.

25. At the time of arrest, Plaintiff Anil had no criminal record; employed as a law enforcement officer for the ASPCA and was an Angel Award Recipient. Plaintiff Anil was also father of four daughters; married; a homeowner and was close to graduating from Hunter College.

COUNT ONE

42 U.S.C. § 1983

Malicious Prosecution

Against Individual Defendant

New York City Police Officer Alberto Torres Chamorro

26. Plaintiff Anil repeats and realleges each and every allegation above as if fully set forth herein.

27. Defendant Officer Torres-Chamorro initiated a prosecution against Plaintiff Anil

28. Defendant Officer Torres-Chamorro lacked probable cause to believe the proceeding could succeed

29. Defendant Officer Torres-Chamorro acted with malice, and

30. The prosecution was terminated in Plaintiff Anil's favor

31. As a direct and proximate result of the malicious prosecution detailed above, Plaintiff Anil sustained the damages herein alleged.

COUNT TWO

42 U.S.C. § 1983

Against Defendant City

32. Plaintiff Anil incorporates by reference the factual allegations set forth above as if fully set forth herein.

33. Prior to the date of the incident alleged herein, the City of New York developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of persons in New York, which caused the violation of plaintiff's rights.

34. It was the policy and/or custom of the City of New York to inadequately and improperly investigate citizen complaints of widespread, systemic police misconduct, and such acts of misconduct have instead been allowed by the City of New York.

35. It was the policy and/or custom of the City of New York to inadequately supervise and train its police officers, including the defendant officer, thereby failing to adequately discourage further constitutional violations on the part of its police officers. The City of New York did not require appropriate in-service training or re-training of officers who were known to have engaged in police misconduct.

36. It was the policy and/or custom of the City of New York to inadequately supervise and train its assistant district attorneys, thereby failing to adequately discourage further constitutional violations on the part of its assistant district attorneys. The City of New York did not require appropriate in-service training or retraining of assistant district attorneys who were known to have engaged in misconduct.

37. The effects of any in-service training and re-training of officers and assistant district attorneys known to have engaged in misconduct were wholly negated by the rampant culture of misconduct and impunity sanctioned by the command structure of the New

York City Police Department, New York City District Attorney's Office, and the City of New York.

38. As a result of the above-described policies and customs, police officers and assistant district

attorneys of the City of New York, including the Defendant, believed that his actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be allowed.

39. The above-described policies and customs demonstrated a deliberate indifference on the part of policymakers of the City of New York to the constitutional rights of persons within the City and were the cause of the violations of Plaintiff's rights alleged herein.

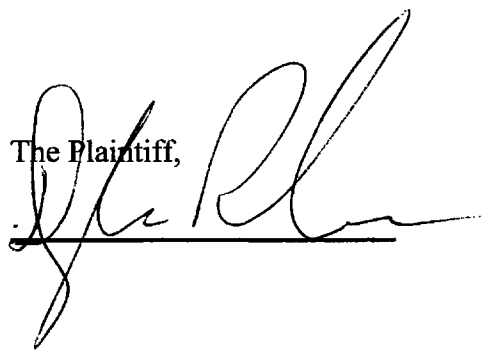
PRAYER FOR RELIEF

WHEREFORE, Plaintiff requests that this Court:

- (a) Award compensatory damages against the Defendants, jointly and severally.
- (b) Award punitive damages against the individual Defendants, jointly and severally.
- (c) Award costs of this action to the Plaintiff.
- (d) Award reasonable attorneys' fees and costs to the Plaintiff pursuant to 28 U.S.C. § 1988.

DATED: December 8, 2021
Brooklyn, New York

The Plaintiff,

A handwritten signature in black ink, appearing to be "J. R. [unclear]", written over a horizontal line.

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